

place, and for the presence of which not even the patent in suit provided conclusive evidence.

in T 1273/09 the board had serious doubts that the claimed **homeopathic treatment** of hypertension could be reliably and reproducibly achieved by the mixture claimed for the following reasons, namely (i) because on the standards of "conventional" medicine and science it was inconceivable that a homeopathic medicament which did not contain any active substance achieved specific therapeutic effects and (ii) because on the standards of homeopathic medicine it was inconceivable that a homeopathic medicament that was not applied according to homeopathic principles could achieve **specific therapeutic effects**. The board could not conclude that the disclosure in the application – and this was the only source of information in the case at issue – put the skilled person in a position to achieve the claimed treatment of hypertension in a reliable and reproducible manner. The reason was **not**, as suggested by the appellants, a mere, **unsubstantiated "disbelief"**. Rather, the conclusion was drawn by taking into account the quality and quantity of available evidence.

9.7. Miscellaneous – argument based on potential effects on competition rejected by the board

In ex parte case T 416/14 the application documents did not contain any experimental data which could be used to verify the claims, and the appellant (applicant) had not submitted any such data as evidence. The appellant was right that Art. 83 EPC did not per se require experimental data for sufficient disclosure. However, in the absence of any supporting evidence and in light of the evidence to the contrary, the board was not convinced that the appellant was actually able to fabricate a switch that could withstand the claimed field strength without breakdown. Nor could the board accept the argument that a patent on an invention which could not be carried out would be of no harm; Art. 83 EPC was a requirement of the Convention that had to be fulfilled, irrespective of what **potential effects on competitors** a patent might or might not have.

See chapter III.G.5.1.2c) "Sufficiency of disclosure".

D. Priority

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1. Introduction

Art. 87 to 89 EPC govern the concept of priority under the EPC.

According to Art. 87(1) EPC, any person who has duly filed, in or for (a) any State party to the Paris Convention for the Protection of Industrial Property or (b) any Member of the World Trade Organization, an application for a patent, a utility model or a utility certificate, or his successor in title, shall enjoy, for the purpose of filing a European patent application in respect of the same invention, a right of priority during a period of twelve months from the date of filing of the first application. Art. 88 EPC regulates formal and substantive aspects of claiming priority. According to Art. 89 EPC, the effect of the priority right is that the date of priority counts as the date of filing of the European patent application for the purposes of Art. 54(2) and (3) EPC and Art. 60(2) EPC.

The right of priority is generally regarded as one of the cornerstones of the Paris Convention. Its basic purpose is to safeguard, for a limited period, the interests of a patent applicant in his endeavour to obtain international protection for his invention, thereby alleviating the negative consequences of the principle of territoriality (T 15/01, OJ 2006, 153).

Art. 87 to 89 EPC provide a complete, self-contained code of rules on claiming priority for the purpose of filing a European patent application (see J 15/80, OJ 1981, 213, confirmed in e.g. J 9/07). However, since the EPC – according to its preamble – constitutes a special agreement within the meaning of Art. 19 of the Paris Convention, it is clearly intended not to contravene the basic principles concerning priority laid down in the latter (see T 301/87, OJ 1990, 335; G 3/93, OJ 1995, 18 and G 2/98, OJ 2001, 413).

Furthermore, in view of Art. 87(1) and (2) EPC, the priority system adopted by the European legislator also recognises "internal priorities" (T 15/01, OJ 2006, 153). In this context the question of double patenting has arisen – relevant decisions, in particular G 4/19 (OJ 2022, A26) on the points of law referred to the Enlarged Board of Appeal in T 318/14 of 7 February 2019 (OJ 2020, A104), can be found in chapter II.F.5.

The EPO does not normally check the validity of a priority right during examination. A check must be made, however, if relevant prior art has been made available to the public within the meaning of Art. 54(2) EPC on or after the priority date claimed and before the date of filing (priority interval) or if the content of the European patent application is totally or partially identical with the content of another European application within the meaning of Art. 54(3) EPC, such other application claiming a priority date within the above-mentioned period (Guidelines F-VI, 2.1 – March 2022 version). In opposition proceedings this applies where prior art is invoked in connection with a ground for opposition under Art. 100(a) EPC in relation to which the priority date is of decisive importance (Guidelines D-III, 5 – March 2022 version). Failure by the respective division to check the validity of the priority right in the circumstances described has been held to be a substantial procedural violation (see T 16/89, T 737/95, T 2170/08). On publications during the priority interval, see also G 3/93 (OJ 1995, 18), summarised in chapter II.D.5.1.

For issues of evidence concerning the validity of the priority claim, see also chapter [III.G.4.3.5](#) and [III.G.5.1.2 d](#)). For decisions on the correction of the priority declaration, see chapter [IV.A.8.2](#). [J 13/16](#), a decision concerning the remedy of restoration of the right of priority under [R. 49ter.2 PCT](#), is reported in chapter [VI.3.2.3](#).

2. Applications giving rise to a right of priority

2.1. Application filed in or for a state which is party to the Paris Convention or a member of the WTO

Under the EPC 2000 [Art. 87\(1\) EPC](#) was amended to align it with Art. 2 TRIPS, which requires that priority rights also be extended to first filings made in or for any member of the World Trade Organization (WTO) (OJ SE 4/2007, 88). The revised provision governs applications filed on or after 13 December 2007.

Previously, in [G 2/02](#) and [G 3/02](#) (OJ 2004, 483) the Enlarged Board decided that the obligations deriving from the TRIPS Agreement did not bind the EPO directly and did not therefore entitle the applicant for a European patent to claim priority from a first filing in a state which at the relevant dates was not a member of the Paris Convention but was a member of the WTO/TRIPS Agreement.

2.2. Right of priority of the applicant or his successor in title

2.2.1 General

Pursuant to [Art. 87\(1\) EPC](#), a right of priority originates in the applicant of a first application. Therefore, in principle, the applicant has to be the same for the first application and for the subsequent application for which the right of priority is invoked. However, pursuant to [Art. 87\(1\) EPC](#), the right of priority may also be invoked by the "successor in title" of the person who has filed the first application. By reference to the "successor in title", it is recognised that the right of priority, being a legal right, may be transferred from the original applicant to a third person. It is generally accepted that the right of priority is transferable independently of the corresponding first application and may furthermore be transferred to a third person for one or more countries only. It is an independent right until it is invoked for one or more later applications, to which it becomes an accessory, and it has to be distinguished from the right to the patent deriving either from substantive law or from the status of being the applicant of the first application ([T 205/14](#), with further references; see also [T 969/14](#); and [T 1201/14](#) with further references).

The board in [T 844/18](#) held that the instances of the EPO are empowered and obliged to assess the validity of a priority right claim as required by [Art. 87\(1\) EPC](#), and this includes examining the issue of "who" concerning priority entitlement. This decision is further referred to in chapter [II.D.2.2.2](#) and [2.2.3](#)). This issue is also addressed in the first question referred to the Enlarged Board of Appeal in [G 1/22](#) and [G 2/22](#) (see chapter [II.D.2.2.3](#)).

Concerning succession in title to the right of priority, according to [T 1201/14](#), it is clear from the wording of [Art. 87\(1\) EPC 1973](#) alone that this must have already taken place

when the subsequent application is filed. The board in T. 577/11 already confirmed that a succession in title that occurred after the filing date of the subsequent application was not sufficient to comply with the requirements of Art. 87(1) EPC 1973. This finding was in line with Art. 4 Paris Convention and the legislative history of these provisions.

The board in T. 969/14 held, with reference to Enlarged Board decision G. 1/15 ("Partial priority", OJ 2017, A82), that once it is acknowledged that partial priority rights exist they must also be transferable separately. This, however, has consequences for the remaining priority right, because the assignor is left with a limited right. On partial and multiple priorities, see also in this chapter II.D.5. For decisions concerning the entitlement of co-applicants see in this chapter II.D.2.2.3.

2.2.2 Applicable law – proof of transfer

In T. 844/18 the board held that it was not, as argued by the appellants, the national law of the place of filing of the priority application (here US law) that determined who qualified as "any person", but the Paris Convention, to which the US was a party and which was thus part of the "supreme Law of the Land" (Art. VI, clause 2, US Constitution). The board also concluded that this determination was a purely formal one. The Paris Convention and the EPC provided self-contained definitions of the person claiming priority. This person was defined by the action that they performed, i.e. filing a first application. With regard to the formal requirements for the transfer of the right of priority, the board in T. 1201/14 observed that, as the EPC contained neither guidance nor conflict-of-law provisions for that purpose, national law was commonly relied upon by the departments of the EPO entrusted with the procedure. The board also acknowledged that there was no established jurisprudence of the boards as to the national law generally applicable to this question.

In T. 1008/96 the European patent application resulting in the patent in suit and the two Italian utility model applications from which priority was claimed had been filed by different persons. The board held that the succession in title had to be proven to its satisfaction. It was a general principle of procedural law that any party claiming a right had to be able to show that it was entitled to that right (see J. 19/87). This question had to be answered in accordance with national law. The board concluded that the respondent had failed to prove that it was the successor in title in respect of the two Italian utility model applications. Consequently, no priority rights existed for the patent in suit.

In T. 62/05 the board pointed out that the EPC did not contain any regulations on the formal requirements that an assignment of priority rights for the filing of a European patent application should fulfil in order to be considered valid for Art. 87(1) EPC 1973. However, having regard inter alia to the crucial effect that a valid priority date has on patentability (cf. Art. 89 EPC 1973), such transfer of priority rights, in the board's view, had to be proven in a formal way (by analogy with T. 1056/01 – also summarised in chapter III.G.4.3.5; see, however, T. 160/13 and T. 205/14 below). It hence appeared reasonable to apply an equally high standard of proof as that required for the assignment of a European patent application by Art. 72 EPC 1973, which, however, the board concluded was not met here. Furthermore, the appellant could not convince the board that an assignment had taken place implicitly and tacitly before the end of the twelve-month period.